

SENATE BILL 1659

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to sentencing for criminal
offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-204(i), is amended by adding the following as new subdivisions:

(20) The defendant committed aggravated rape of a child against a victim who was less than four (4) years of age at the time of the commission of the offense;

(21) The defendant committed incest in the commission of the offense;

(22) At the time of the commission of the offense, the defendant was in a position of trust, or had supervisory, disciplinary, or custodial authority over the victim by virtue of the defendant's legal, professional, or occupational status and used the position of trust or authority to accomplish the offense;

(23) At the time of the commission of the offense, the defendant was previously convicted in this state or another jurisdiction of one (1) or more felony or misdemeanor offenses, other than the present charge, the statutory elements of which involve unlawful sexual contact with a minor;

(24) At the time of the commission of the offense, the defendant was required to register as a sexual offender, violent sexual offender, or violent juvenile sexual offender; serving a sentence of community supervision for life; or subject to an equivalent sexual offender registration or monitoring requirement in another jurisdiction;

(25) The defendant filmed, recorded, photographed, live-streamed, or otherwise transmitted a video or photograph of the offense;

(26) The defendant utilized an intoxicant, controlled substance, or other substance to influence the victim's central nervous system in the commission of the offense;

(27) The defendant used a deadly weapon in the commission of the offense if the defendant is being sentenced for rape of a child or aggravated rape of a child;

(28) At the time of the commission of the offense, the defendant knew or reasonably should have known that the victim was mentally defective, mentally incapacitated, or physically helpless;

(29) During the commission of the offense, the defendant's actions were especially heinous, atrocious, or cruel or involved the infliction of torture to the victim;

(30) The defendant provided remuneration to the victim or another for the purpose of gaining access to the victim, or to the victim in return for the victim's silence; or

(31) During the proceeding which resulted in the defendant's conviction for rape of a child or aggravated rape of a child, the defendant was also convicted of additional counts of rape of a child, aggravated rape of a child, aggravated sexual battery, or continuous sexual abuse of a child involving one (1) or more other victims.

SECTION 2. Tennessee Code Annotated, Section 39-13-204, is amended by deleting subdivision (j)(3) and substituting:

(3) The victim was a participant in the defendant's conduct or consented to the act; however, the victim's participation in the defendant's conduct or consent to the act is not a mitigating factor if the defendant was convicted of rape of a child or aggravated rape of a child;

SECTION 3. Tennessee Code Annotated, Section 39-13-207(a)(1), is amended by deleting "guilty of first degree murder," and substituting "guilty of first degree murder or rape of a child, then".

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts occurring on or after that date.